

Court No. - 4

Case :- WRIT - C No. - 1977 of 2023

Petitioner :- Avadh Saran Singh

Respondent :- State Of U.P. Thru. Addl. Chief Secy. Energy Deptt. U.P. Govt. Civil Sectr. Lko. And Others

Counsel for Petitioner :- Prashant Tiwari, Siddhant Singh Visen

Counsel for Respondent :- C.S.C., Neera Yadav

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

1. Heard learned counsel for the petitioner and learned Standing Counsel who appears for the Respondents No. 2 and 3.

2. This petition has been filed with the following main prayer:-

*"i) A writ, order or direction in the nature of certiorari thereby quashing the impugned demand notice dated 17.02.2023 issued by the Opposite Party No. 3, contained in **Annexure No.2** to this writ petition.*

*ii) A writ, order or direction in the nature of certiorari thereby quashing the impugned demand notice dated 01.02.2023 issued by the Opposite Party No.3, contained in **Annexure No.1** to this writ petition."*

3. It is the case of the petitioner that the petitioner runs a factory in the name of Awadh Rasri Udyog in Village- Imiliya Gurudayai, Baragaon, District- Gonda and had applied for two meter connections of 5 K.W. and 7 K.W. The petitioner's father on the basis of electricity consumption had applied for disconnection of 05 K.W. connection and paid all the dues, and the connection was permanently disconnected. The petitioner continued to run the factory on the basis of sanctioned load of 07 K.W. On 27.01.2023, few persons inspected the factory premises and alleged electricity theft, the petitioner was asked to pay Rs. 2,50,000/- by the team to make a

favourable report. The petitioner did not pay the amount. Two days later the petitioner received a phone call from unknown number asking him to come to the office and when the petitioner approached the office he was made to sign some yellow papers without him being allowed to read the same. Thereafter, the petitioner was served a notice of Provisional Assessment on 03.02.2023, the said Provisional Assessment was given without compliance with the provisions of Clause 6.8 (a) (vi) and (b) (i) of Chapter 6 of the Electricity Supply Code, 2005 where after inspection is carried out, the occupier of the premises shall be made to sign inspection memo and a report shall be prepared at the site giving all details and such report shall give detailed evidence collected against the occupier of the premises, and the occupier shall be handed over such report at the site immediately under not prepare receipt. In case of refusal of consumer or its representatives to accept the report or give a receipt, a copy of the inspection report shall be pasted at a conspicuous place outside the premises and shall also be sent to the consumer under Registered Post/Speed Post on the next day of such inspection. No such procedure was followed, no copy of the report was given to the petitioner.

4. The petitioner has filed his objection to the Provisional Assessment which was also not considered and final orders were passed i.e. Demand Notice dated 17.02.2023.

5. Ms. Neera Yadav, learned Standing Counsel has stated that the petitioner shall be given a copy of the report within three days of approaching the opposite party no. 3, he may be submit his objection to the said report within one week thereafter, and the opposite party no. 3 shall thereafter pass the appropriate orders after considering the objection of the petitioner.

6. This writ petition is **disposed of** with a direction to the petitioner to approach the opposite party no. 3 within four working days from today. He shall be given a copy of the inspection report by the opposite party no. 3 within three days thereafter. On receipt of such copy of report,

the petitioner may submit his representation/objection within one week. The opposite party no. 3 shall consider and decide the objections of the petitioner and pass a final order within three weeks thereafter.

7. For a period of four weeks or till a decision is taken on the representation/objection of the petitioner, recovery proceedings in pursuance of the Demand Notice dated 17.02.2023 shall remain ***stayed***.

8. The benefit of this order shall be available to the petitioner only if such he complies with the time schedule as framed herein above.

Order Date :- 16.3.2023

Darpan Sharma